

MUNNERLYN, ET AL. VS. MARTIN, ET AL.

CASE NUMBER: 24CV-0205402

Tentative Ruling on Motion to Set Aside: Respondent Jonathan Martin moves to Set Aside Default. No proof of service of the Motion or a notice of hearing are on file. The Court cannot proceed to hear the merits of a Motion unless all parties have been served. Therefore, absent a request from Mr. Martin for a continuance to properly notice the Motion, the Court intends to **DENY** the Motion for failure to serve.

IN RE: PEACOCK

CASE NUMBER: 26CV-0211028

Tentative Ruling on Petition for Change of Name: Petitioner Christian Andrew Peacock seeks to change his name to Christian Andrew Johnston. All procedural requirements of CCP §§ 1275 et. seq. have been satisfied. The Petition is **GRANTED**. All future dates will be vacated, and the file closed upon the processing of the Decree Changing Name.

PERRY VS. COUNTY OF SHASTA

CASE NUMBER: 26CV-0209982

DISCLOSURE: Judge Birss worked as an associate attorney at Berg and Associates from June 2014 through September 2018. His prior employment falls outside the time period requiring recusal. That prior employment does not impact his ability to be fair and impartial.

Tentative Ruling on Request for Administrative Record, and for Setting Briefing Schedule, and Hearing: This matter is on calendar for hearing on Petitioner's request that the Court request the Administrative Record and set a briefing schedule and hearing pursuant to Gov. Code 53069.4(b). The Court finds that this Motion is moot. The Administrative Record was lodged on July 24, 2026. The parties previously stipulated to the briefing schedule set forth in the County's Proposed Briefing and Hearing Schedule, filed June 10, 2026. The hearing has been set for October 30, 2026 at 8:30 a.m. All the relief requested in Petitioner's July 24, 2026 Request has been resolved. The Request is moot and is dropped from calendar. No appearances are necessary. The Court confirms the future hearing date of September 21, 2026 at 8:30 a.m. in Department 64 for further proceedings regarding the Motion for Stay of Enforcement.

IN RE: PETRICK

CASE NUMBER: 26CV-0211024

Tentative Ruling on Petition for Change of Name: Petitioner Kierra Lee Petrick seeks to change her last name to Love. She also seeks to change her two minor children's last name from Petrick to Love. Proof of publication has been filed.

However, the Petition is brought by only one parent. The father is not identified in the Petition. Petitioner must file an Amended Petition identifying the father. Additionally, when a petition to change the name of a minor is brought by one parent only, the nonconsenting parent must be personally served with the notice of hearing or order to show cause at least 30 days before the hearing date. See CCP § 1277(a)(4).

In the alternative to personal service, the Court may order notice be given in another manner the Court determines is reasonably calculated to give actual notice to the non-consenting parent. CCP § 1277(a)(4). No proof of service is on file. The Court has reviewed the Petitioner's declaration which states she could not locate the father when she was going through divorce court in 2024/2025. The Court will require Petitioner to make new efforts to locate and serve the father

notice of this Petition. Petitioner must file proof of service, or a declaration which sufficiently details new efforts to locate and serve the father, at least five days before the future court date.

This matter is continued to **October 19, 2026, at 8:30 a.m. in Department 64** to permit service on the father. Petitioner shall file an Amended Order to Show Cause (“Amended OSC”) for the continued hearing date. The Amended OSC must be personally served on the father at least 30 days before the continued hearing date. No appearance is necessary on today’s calendar.

IN RE: RUIZ

CASE NUMBER: 26CV-0210906

Tentative Ruling on Petition for Change of Name: Petitioner Shawnee Blue Ruiz seeks to change her name to Shawnee Blue Cross. No proof of publication has been submitted. The Court requires a Certificate of Publication from the publishing newspaper before the Petition may be granted. If the Certificate of Publication is provided, the Court intends to grant the Petition, vacate all future dates and close the file.

SKAGGS VS. MITCHELL, ET AL.

CASE NUMBER: 24CV-0205961

Tentative Ruling on Motion for Attorney Fees: Plaintiff moves for an order awarding attorney fees and costs incurred for the common benefit of all owners in this partition action, pursuant to CCP §§ 874.010 and 874.040. The motion is unopposed.

CCP § 874.010 provides that the costs of partition include the reasonable attorney fees incurred or paid by a party for the common benefit. CCP § 874.040 provides that the court shall apportion the costs of partition among the parties in proportion to their interests, or as may be equitable. Here, the Court entered Interlocutory Judgment Granting Partition by Sale on March 30, 2026. That Judgment provides for the award of reasonable attorney fees and costs incurred for the common benefit of all owners in amount to be determined on motion. The Judgment further provides for the deduction of the awarded fees and costs from the proceeds of the sale prior to distribution to the parties.

The Court finds that the attorney fees sought are reasonable. The hourly rate for counsel (\$325) and for the paralegal (\$125) is within the range typically awarded for comparable work in Shasta County. Additionally, the request is supported by a Declaration of Counsel and detailed billing records. The hours billed are reasonable. The Declaration of Counsel also provides an itemized list of expenses. These are recoverable with the exception of costs for printing (\$94.25) and mailing (\$280.22). CCP § 1033.5(b)((3) provides that postage and photocopying charges are not allowable costs. Therefore, the total award will be reduced by \$374.47.

The Motion is **GRANTED**. Attorney fees and costs in the total amount of \$21,802.50 are awarded. Pursuant to the Court’s March 30, 2026 Judgment, this amount is to be deducted from the proceeds of the sale of the subject property prior to distribution to the parties. The proposed order will be modified.

SP CONTRACTING, INC. VS. HOUSTON, ET AL.

CASE NUMBER: 26CVG-00664

This matter is on calendar for hearing on Defendant/Cross-Complainant’s Demurrer to Plaintiff’s Complaint. On the Court’s own motion, the hearing is continued to **Tuesday, September 8, 2026 at 8:30 a.m. in Department 64**. The clerk has provided notice to all parties. No appearances are